

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4421 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Kyle Hilbert

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 4421

By: Hilbert

FLOOR SUBSTITUTE

An Act relating to children; enacting Leo's Law; amending 10A O.S. 2021, Section 1-2-102, as last amended by Section 2, Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-2-102), which relates to abuse and neglect; requiring that safety analysis be conducted within certain amount of time in certain circumstances; mandating drug screening for certain individuals; directing the court to order certain individuals to pay certain cost in certain circumstances; providing when drug testing shall occur; directing the Department of Human Services to make referral to law enforcement agency in certain circumstances; directing the Department to promulgate rules by certain date; providing that the court may direct certain individuals to pay for drug testing; providing exception; creating the Child Welfare Fentanyl Testing Revolving Fund; providing purpose; mandating annual audit; directing the Department to provide annual report; providing information report shall contain; amending 21 O.S. 2021, Section 852.1, as amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1), which relates to child endangerment; modifying what constitutes child endangerment; providing definition; providing for fines and penalties; requiring act to be carried out within existing appropriations and designated funds; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law not to be
2 codified in the Oklahoma Statutes reads as follows:

3 This act shall be known and may be cited as "Leo's Law".

4 SECTION 2. AMENDATORY 10A O.S. 2021, Section 1-2-102, as
5 last amended by Section 2, Chapter 26, O.S.L. 2025 (10A O.S. Supp.
6 2025, Section 1-2-102), is amended to read as follows:

7 Section 1-2-102. A. 1. Upon receipt of a report that a child
8 may be abused, neglected or drug-endangered, the Department of Human
9 Services shall conduct a safety analysis.

10 2. The Department may employ or contract with active or retired
11 social work, medical and law enforcement professionals who shall be
12 strategically placed throughout the state to:

- 13 a. provide investigation support and to assist
14 caseworkers with assessment decisions and intervention
15 activities,
- 16 b. serve as consultants to caseworkers in all aspects of
17 their duties, and
- 18 c. designate persons who shall act as liaisons within the
19 Department whose primary functions are to develop
20 relationships with local law enforcement agencies and
21 courts.

22 3. The Department shall forward a report of its assessment or
23 investigation and findings to any district attorney's office which
24

1 may have jurisdiction to file a petition pursuant to Section 1-4-101
2 of this title.

3 4. The Department shall determine the military status of
4 parents whose children are subject to abuse or neglect. If the
5 Department determines that a parent or guardian is currently serving
6 on active duty in the United States military, the Department shall
7 notify a United States Department of Defense family advocacy program
8 that there is an investigation into the parent or guardian. The
9 Department shall forward a report of its assessment or investigation
10 and findings to the appropriate military law enforcement entity.

11 5. Whenever the Department determines there is a child that
12 meets the definition of a "drug-endangered child", as defined in
13 Section 1-1-105 of this title, or a child has been diagnosed with
14 fetal alcohol syndrome and the referral is accepted for
15 investigation, the Department shall conduct an investigation of the
16 allegations and shall not limit the evaluation of the circumstances
17 to an assessment.

18 6. Whenever the Department determines an infant has been
19 diagnosed with Neonatal Abstinence Syndrome or a Fetal Alcohol
20 Spectrum Disorder, but the referral is not accepted for
21 investigation, the Department shall develop a plan of safe care that
22 addresses both the infant and affected family member or caregiver.
23 The plan of safe care shall address, at a minimum, the health and
24

1 substance use treatment needs of the infant and affected family
2 member or caregiver.

3 B. 1. Upon receipt of a report that a child may be drug-
4 endangered or whenever the Department determines there is a child
5 that meets the definition of a "drug-endangered child", as defined
6 in Section 1-1-105 of this title, the Department of Human Services:

7 a. shall initiate a safety analysis within twenty-four
8 (24) hours, and

9 b. shall attempt to acquire consent for an immediate drug
10 screening for any parent, guardian, or caregiver if
11 substance use is suspected or confirmed, including,
12 but not limited to, methamphetamine production or use,
13 opioid exposure, or any indication of fentanyl
14 presence, including indication via report,
15 observation, or prior history. Prior history shall
16 include, but shall not be limited to, prior history
17 documented by the Department and publicly available
18 court records on the Oklahoma State Courts Network
19 website. If the parent, guardian, or caregiver
20 refuses to consent to a drug screening and substance
21 use is suspected or confirmed following a safety
22 analysis, the Department shall notify a district
23 attorney within twenty-four (24) hours to request a
24 court order compelling the parent, guardian, or

1 caregiver submit to a drug screening. If the parent,
2 guardian, or caregiver refuses to consent to a drug
3 screening and the court orders the parent, guardian,
4 or caregiver to submit to a drug screening, the
5 district court judge shall also order such parent,
6 guardian, or caregiver to pay the drug screening cost.
7 All drug screenings shall include mandatory fentanyl
8 testing.

9 2. Drug testing shall occur:

- 10 a. at intake for investigations and removals, pursuant to
11 subsection B of this section,
12 b. as part of ongoing monitoring in open cases, or upon
13 reasonable suspicion, and
14 c. prior to any reunification, visitation expansion, or
15 case closure.

16 3. If, upon receipt of a report alleging that a child is drug-
17 endangered, the Department determines that drug activity is
18 indicated or that the child meets the definition of a "drug-
19 endangered child", as defined in Section 1-1-105 of this title, the
20 Department shall immediately make a referral, either verbally or in
21 writing, to the appropriate local law enforcement agency for the
22 purpose of conducting a possible criminal investigation.

1 C. 1. If, upon receipt of a report alleging abuse or neglect
2 or during the assessment or investigation, the Department determines
3 that:

4 a. the alleged perpetrator is someone other than a person
5 responsible for the child's health, safety, or
6 welfare, and

7 b. the alleged abuse or neglect of the child does not
8 appear to be attributable to failure on the part of a
9 person responsible for the child's health, safety, or
10 welfare to provide protection for the child,

11 the Department shall immediately make a referral, in writing, to the
12 appropriate local law enforcement agency for the purpose of
13 conducting a possible criminal investigation. The Department shall
14 maintain a record of its transmission of each report to law
15 enforcement.

16 2. After making the referral to the law enforcement agency, the
17 Department shall not be responsible for further investigation
18 unless:

19 a. the Department has reason to believe the alleged
20 perpetrator is a parent of another child, not the
21 subject of the criminal investigation, or is otherwise
22 a person responsible for the health, safety, or
23 welfare of another child,

1 b. notice is received from a law enforcement agency that
2 it has determined the alleged perpetrator is a parent
3 of or a person responsible for the health, safety, or
4 welfare of another child not the subject of the
5 criminal investigation, or

6 c. the appropriate law enforcement agency requests the
7 Department to assist in the investigation. If funds
8 and personnel are available, as determined by the
9 Director of the Department or a designee, the
10 Department may assist law enforcement in interviewing
11 children alleged to be victims of physical or sexual
12 abuse.

13 3. If, upon receipt of a report alleging abuse or neglect or
14 during the assessment or investigation, the Department determines
15 that the alleged abuse or neglect of the child involves:

16 a. a child in the custody of the Office of Juvenile
17 Affairs, and

18 b. at the time of the alleged abuse or neglect, such
19 child was placed in a secure facility operated by the
20 Office of Juvenile Affairs, as defined by Section 2-1-
21 103 of this title,

22 the Department shall immediately make a referral, either verbally or
23 in writing, to the appropriate law enforcement agency for the
24 purpose of conducting a possible criminal investigation. After

1 making the referral to the law enforcement agency, the Department
2 shall not be responsible for further investigation.

3 ~~C.~~ D. 1. Any law enforcement agency receiving a referral as
4 provided in this section shall provide the Department with a copy of
5 the report of any investigation resulting from a referral from the
6 Department.

7 2. Whenever, in the course of any criminal investigation, a law
8 enforcement agency determines that there is cause to believe that a
9 child, other than a child in the custody of the Office of Juvenile
10 Affairs and placed in an Office of Juvenile Affairs secure juvenile
11 facility, may be abused or neglected by reason of the acts,
12 omissions, or failures on the part of a person responsible for the
13 health, safety, or welfare of the child, the law enforcement agency
14 shall immediately contact the Department for the purpose of an
15 investigation.

16 ~~D.~~ E. If, upon receipt of a report alleging abuse or neglect,
17 the Department determines that the family has been the subject of a
18 deprived petition, the Department shall conduct a thorough
19 investigation of the allegations and shall not limit the evaluation
20 of the circumstances to an assessment. In addition, if the family
21 has been the subject of three or more referrals, the Department
22 shall conduct a thorough investigation of the allegations and shall
23 not limit the evaluation of the circumstances to an assessment.

1 ~~E.~~ F. For the purposes of this section, "law enforcement" shall
2 include military law enforcement if the subject of an investigation
3 of abuse or neglect is currently serving in any branch of the United
4 States military.

5 ~~F.~~ G. The Department shall promulgate rules by November 1,
6 2026, to implement the provisions of this section.

7 SECTION 3. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 10A of Title 1-4-717, unless
9 there is created a duplication in numbering, reads as follows:

10 A. The district court judge may order the family, or a member
11 of the family, a guardian, or a caregiver who is subject to fentanyl
12 testing under this act to pay drug testing costs.

13 B. The Department of Human Services shall cover the cost when
14 the individual:

- 15 1. Is enrolled in a state or federal voucher program;
- 16 2. Receives qualifying public assistance; or
- 17 3. Demonstrates financial hardship via affidavit.

18 SECTION 4. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 10A of Title 1-4-718, unless
20 there is created a duplication in numbering, reads as follows:

21 A. There is hereby created in the State Treasury a revolving
22 fund for the Department of Human Services to be designated the
23 "Child Welfare Fentanyl Testing Revolving Fund". The fund shall be
24 a continuing fund, not subject to fiscal year limitations, and shall

1 consist of the fifty-dollar fee imposed pursuant to paragraph 2 of
2 subsection D of Section 5 of this act. All monies accruing to the
3 credit of said fund are hereby appropriated and may be budgeted and
4 expended by the Department of Human Services for the purpose of
5 offsetting the Department of Human Services' drug testing costs.
6 Expenditures from said fund shall be made upon warrants issued by
7 the State Treasurer against claims filed as prescribed by law with
8 the Director of the Office of Management and Enterprise Services for
9 approval and payment.

10 B. The Oklahoma State Auditor and Inspector shall audit the
11 fund annually.

12 C. The Department of Human Services shall submit an annual
13 report by December 31 to the Speaker of the Oklahoma House of
14 Representatives and the President Pro Tempore of the Oklahoma State
15 Senate that includes, but is not limited to, testing volumes, costs,
16 positive rates, and fund balance, including impacts on child safety
17 outcomes.

18 SECTION 5. AMENDATORY 21 O.S. 2021, Section 852.1, as
19 amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
20 2025, Section 852.1), is amended to read as follows:

21 Section 852.1. A. A person who is the parent, guardian, or
22 person having custody or control over a child as defined in Section
23 1-1-105 of Title 10A of the Oklahoma Statutes, commits child
24 endangerment when the person:

1 1. Knowingly permits physical or sexual abuse of a child;

2 2. Knowingly permits a child to be present at a location where
3 a controlled dangerous substance is being manufactured or attempted
4 to be manufactured as defined in Section 2-101 of Title 63 of the
5 Oklahoma Statutes;

6 3. Knowingly and willfully permits or causes a child under
7 eighteen (18) years of age to be placed in a situation where the
8 child's life, health, or safety is endangered, as defined in
9 subsection B of this section;

10 4. Knowingly permits a child to be present in a vehicle when
11 the person knows or should have known that the operator of the
12 vehicle is impaired by or is under the influence of alcohol or
13 another intoxicating substance; or

14 ~~4.~~ 5. Is the driver, operator, or person in physical control of
15 a vehicle in violation of Section 11-902 of Title 47 of the Oklahoma
16 Statutes while transporting or having in the vehicle such child or
17 children.

18 However, it is an affirmative defense to this paragraph if the
19 person had a reasonable apprehension that any action to stop the
20 physical or sexual abuse or deny permission for the child to be in
21 the vehicle with an intoxicated person would result in substantial
22 bodily harm to the person or the child.

1 Nothing in this subsection shall prohibit the prosecution of a
2 person pursuant to the provisions of Section 11-902 or 11-904 of
3 Title 47 of the Oklahoma Statutes.

4 B. "Endangerment" includes, but is not limited to, exposing a
5 child to fentanyl or fentanyl analogs through possession, use,
6 distribution, or environmental contamination in the home.

7 C. The provisions of this section shall not apply to any
8 parent, guardian or other person having custody or control of a
9 child for the sole reason that the parent, guardian or other person
10 in good faith selects and depends upon spiritual means or prayer for
11 the treatment or cure of disease or remedial care for such child.
12 This subsection shall in no way limit or modify the protections
13 afforded said child in Section 852 of this title or Section 1-4-904
14 of Title 10A of the Oklahoma Statutes.

15 ~~C.~~ D. 1. Any person convicted of violating any provision of
16 this section shall be guilty of a Class B6 felony offense punishable
17 by imprisonment in the custody of the Department of Corrections for
18 a term of not more than four (4) years, or by a fine not exceeding
19 Five Thousand Dollars (\$5,000.00), or by both such fine and
20 imprisonment.

21 2. If fentanyl was present or detected in the endangerment that
22 led to the conviction, the person convicted shall be guilty of a
23 felony punishable by imprisonment in the custody of the Department
24 of Corrections for a term of not more than five (5) years, or by a

fine not exceeding Five Thousand Dollars (\$5,000.00), or by both
such fine and imprisonment. Such person shall also pay a mandatory
fee of Fifty Dollars (\$50.00) to the State Treasury to be deposited
in the Child Welfare Fentanyl Testing Revolving Fund, pursuant to
Section 4 of this act.

SECTION 6. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

The requirements of this act shall be carried out within
existing appropriations and designated funds, including the Child
Welfare Fentanyl Testing Revolving Fund created in Section 4 of this
act, and shall not require the Department of Human Services to
create new data systems or hire additional full-time employees.

SECTION 7. This act shall become effective November 1, 2026.

60-2-16696 CMA 03/19/26